

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Keam	Team: Team # 8	CCRB Case #: 200608644	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 06/29/2006 5:30 PM	Location of Incident: Vicinity of § 87(2)(b) [REDACTED]		18 Mo. SOL 12/29/2007		Precinct: 107
Date/Time CV Reported Fri, 06/30/2006 12:01 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 06/30/2006 12:01 PM		
Complainant/Victim	Type	Home Address			
[REDACTED]	[REDACTED]	[REDACTED]			
Subject Officer(s)	Shield	TaxID	Command		
1. POM Patrick Hendry	31214	904139	103 PCT		
Officer(s)	Allegation			Investigator Recommendation	
A . POM Patrick Hendry	Abuse: PO Patrick Hendry did not process § 87(2)(b) [REDACTED] [REDACTED] s complaint regarding officers.			A . Unsubstantiated	

Synopsis

On June 30, 2006, § 87(2)(b) made the following complaint via email. He stated that on June 29, 2006 at approximately 5:30PM, two officers (PO1 and PO2) stopped his vehicle in the vicinity of § 87(2)(b) and § 87(2)(b) in Queens. PO1 and PO2 issued § 87(2)(b) summonses for not wearing a seatbelt and for not having proper registration. After the officers issued summonses to § 87(2)(b) they stopped another vehicle, but did not issue summonses to the occupants of that vehicle. § 87(2)(b) became upset and drove to the 103 Precinct to file a complaint against PO1 and PO2. At the precinct, § 87(2)(b) relayed the incident to an officer (PO3) and the officer told him he should go to court to dispute the summonses. § 87(2)(b) then told PO3 that he already knew that and he wanted to make a complaint about PO1 and PO2. PO3 again told § 87(2)(b) that he should go to court (Allegation A). After speaking with PO3 for about 10 minutes, § 87(2)(b) left the precinct. § 87(2)(g) it is recommended that Allegation A be unsubstantiated. Although this case was eligible for mediation, § 87(2)(b) declined to mediate § 87(2)(b).

Summary of Complaint

§ 87(2)(b) is a § 87(2)(b) Asian male with black hair and black eyes. § 87(2)(b) provided three statements regarding this incident: one on June 30, 2006 in his initial complaint via email (enc. 4a-e), one via telephone on July 13, 2006 (enc. 6), and the third at the CCRB on July 20, 2006 (enc. 7a-e) § 87(2)(g)

§ 87(2)(b) stated that on June 30, 2006, at approximately 5:30PM two officers stopped his vehicle in the vicinity of § 87(2)(b) and § 87(2)(b) and issued him two summonses. § 87(2)(b) described the officers as two White males in their mid thirties, both with a medium build and both in uniform. § 87(2)(b) later identified one of the officers as PO Levy from looking at the summonses. § 87(2)(b) received the two summonses for having expired registration for his vehicle and for not wearing a seatbelt. § 87(2)(b) stated that he was furious about receiving a summons for not wearing a seatbelt, because he was wearing a seatbelt at the time of incident. § 87(2)(b) also stated that he had a receipt showing that he had paid for his registration, even though he did not have the actual registration. § 87(2)(b) stated that, shortly after the officers stopped his vehicle, they stopped an older model Jeep. However, the officers did not issue summonses to the occupants of the Jeep. § 87(2)(b) stated that the driver of the Jeep was White. § 87(2)(b) felt as though he received summonses because he “looks different” § 87(2)(b) is Asian).

After receiving the summonses, § 87(2)(b) went to the 103 Precinct to file a complaint about the officers. He stated that he first spoke with a Black female clerk in plainclothes who was sitting at the desk. § 87(2)(b) told the female that he wished to file a complaint and she asked him to have a seat. After waiting for about half an hour, § 87(2)(b) went and spoke to the female clerk again because he felt as though he was being ignored because other people were helped while he was waiting. The female was speaking with a couple of officers and she told § 87(2)(b) that someone should be with him soon. After another 15 minutes or so, a White male officer in uniform, 5’9”-5’10” tall, about 40-45 years old with brownish hair and a medium build came and spoke with him. The officer (later identified as PO Hendry) asked § 87(2)(b) to follow him in the direction of the front hallway. § 87(2)(b) told PO Hendry he wanted to sit down and make a formal complaint about the officers who issued him the summonses. PO Hendry told § 87(2)(b) that he should go to court to dispute his summonses, but § 87(2)(b) told PO Hendry that he was not complaining about the tickets, but wanted to complain about the officers. PO Hendry then told § 87(2)(b) the PO Levy and his partner were not from the 103 Precinct and that he should go to their precinct to file a complaint. § 87(2)(b) then asked PO Hendry if he was refusing to take his complaint and PO Hendry said “no”. PO Hendry then asked § 87(2)(b) if the officers had abused him in any way and § 87(2)(b) told him they had not. PO Hendry then again told § 87(2)(b) that he should go to court to address the summonses. After speaking with PO Hendry for about ten minutes, § 87(2)(b) left the precinct. No other officers witnessed the interaction.

Results of Investigation

Officer Statement

PO Hendry

PO Patrick Hendry is a § 87(2)(b) White male with brown hair and brown eyes. § 87(2)(b) PO Hendry has been a member of the New York City Police Department since 1993. On August 25, 2006 at the CCRB, PO Hendry provided his only statement regarding this incident (enc. 9a-b).

PO Hendry stated that on June 29, 2006, he worked from 15:00 to 23:35 assigned to sector FG. He was dressed in uniform, assigned to marked RMP 1328, and working with PO Rao. PO Hendry did not have any memo book entries regarding the incident.

PO Hendry stated that he did not recall the incident. After being provided with a brief description by the investigator, PO Hendry still did not recall the incident. He said that his last memo book entry for June 29, 2006 was at 17:18 for an incident at § 87(2)(b) (enc. 8a-c). He believed that that incident involved an arrest, but was uncertain. PO Hendry stated that he might have been at the precinct around the time of incident for arrest processing. He stated that he did not recall speaking to anyone regarding a civilian complaint that day. The investigator then showed PO Hendry a photocopy of § 87(2)(b)'s NYS driver's license and asked if the man in the photo looked familiar. PO Hendry stated that he did not recognize the § 87(2)(b). PO Hendry was then asked to explain the general procedure he would follow in processing a civilian complaint. He stated that if someone comes to the precinct, they are directed to the desk officer, who would assist them in filing their complaint. He stated that a civilian could also call the CCRB directly to file a complaint, if they did not wish to do so at the precinct.

Police Documents

103 Precinct Tour 3 Roll Call (enc. 10a-j)

The roll call confirms that PO Hendry was working on the date and time of the incident, assigned to patrol sector FG.

Command Log (enc. 11)

The 103 Precinct Command Log for June 29, 2006 does not contain an entry regarding § 87(2)(b).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

PO Hendry's CCRB History

PO Hendry has no substantiated CCRB allegations.

Conclusions and Recommendations

Officer Identification

§ 87(2)(b) identified PO Hendry by name. He stated that he read his name off of his uniform. § 87(2)(b) also provided a physical description that matched PO Hendry's pedigree with two exceptions. § 87(2)(b) estimated that PO Hendry was 40-45 years old and about 5'9"- 5'10" tall and PO Hendry is § 87(2)(b) years old. According to the roll call, however, there were no other officers with names even remotely similar to Hendry. § 87(2)(g)

Undisputed Facts

There are no undisputed facts in this case.

Disputed Facts

§ 87(2)(g)

Credibility

§ 87(2)(b)

§ 87(2)(g)

PO Hendry

§ 87(2)(g)

Allegation A: PO Patrick Hendry did not process § 87(2)(b)'s complaint regarding officers.

§ 87(2)(b) stated that he told PO Hendry that he wanted to file a complaint against the officers who issued him summonses, because he believed the officers were discriminating against him. § 87(2)(b) stated that PO Hendry told him to go to court to dispute the summonses. § 87(2)(b) told PO Hendry that he knew that already and that he wanted to make a formal complaint against the officers. According to § 87(2)(b) PO Hendry again told him to dispute the summonses in court. § 87(2)(b) asked PO Hendry if he was refusing to file his complaint, and PO Hendry said, “no”. PO Hendry then told § 87(2)(b) that if the officers had not abused him in any way, he should just go to court. After about ten minutes or so, § 87(2)(b) decided to leave the precinct. In his CCRB interview, PO Hendry stated that he did not recall interacting with § 87(2)(b) or speaking with anyone regarding a civilian complaint that day. He believed that he or his partner had had an arrest that day and may have been at the precinct for arrest processing at the time of the incident.

In *PD vs. Furman* (enc. 1a-e), the Honorable Robert Vinal discusses proper Patrol Guide Procedure (207-31) in processing civilian complaints. He states that, “[patrol guide procedure] clearly commands MOS to report “all” misconduct complaints “including” FADO allegations... Patrol Guide Section 207-31 contains no provision which grants MOS the authority to spurn civilian complaints of police misconduct... [It] states that a MOS “must in all cases” process every complaint presented by the civilian”. § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegation A be unsubstantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: